

Vikram Agarwal v. State of U.P. and others

Allahabad High Court · Division Bench · 20 December 2021 · Writ - C No. 28118 of 2021 · **Writ disposed of; prepaid meter already installed treated as permanent connection.**

HEADNOTE

A first-floor occupier's writ for a named permanent connection under Clause 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005 was disposed of as granted once the licensee had installed a prepaid electricity meter described as permanent in nature. The occupier remained at liberty to apply indicating the period of meter requirement, and the authorities were expected to respond if formalities were completed.

FACTUAL SUMMARY

Vikram Agarwal, occupying the first floor of the house-in-question, applied for a permanent connection after furnishing an indemnity bond under Clause 4.4 read with Annexure 4.2 of the U.P. Electricity Supply Code, 2005. A temporary connection had been given under this Court's 17 May 2017 order in Writ C No. 21562 of 2017, renewable every six months. His later application for a permanent connection remained pending. After notice, the distribution licensee submitted that a prepaid electricity meter, permanent in nature, had already been installed at the site.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::4.4

permanent connection; prepaid meter

HOLDING

A writ by a first-floor occupier for a named permanent connection under Clause 4.4 read with Annexure 4.2 is disposed of as granted where the licensee has already installed a prepaid electricity meter that is permanent in nature; the occupier may apply indicating the period of meter requirement, and the authorities are expected to respond once formalities are completed. ¶ 1

PRINCIPLE TAGS

clause-4.4-occupant-connection-on-indemnity-bond The occupier's Clause 4.4/Annexure 4.2 indemnity claim for a named permanent connection was treated as satisfied because a prepaid meter, said to be permanent in nature, had already been installed at the site. ¶ 1

direction-to-consider-connection-on-furnishing-4.4-or-annexure-4.2-documents The occupier was left at liberty to apply indicating the period of meter requirement; the Court expected the licensee to respond if all formalities were completed. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — INDEPENDENT ENTITLEMENT UNDER CLAUSE 4.4 OCCUPANCY AND INDEMNITY CONDITIONS

The Court did not decide whether the first-floor occupier's indemnity application independently required a named permanent connection; disposal rested on the prepaid meter already having been installed. ¶ 1

NOT DECIDED — PERIOD OF PREPAID-METER REQUIREMENT

Left to a further application by the petitioner and a response by the licensee after formalities. ¶ 1